

## Chaldale Harbor District

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| <b>Meeting date</b>  | Public Port Authority And Tidewater Operator Tuesday, 14 June 2022, 6:00 p.m. 1400 Tidewater Way, Chaldale, WA 98554         |
| <b>Location</b>      | Commission Chambers, 1400 Tidewater Way, Chaldale, WA (360) 355-0142                                                         |
| <b>Meeting type</b>  | Regular meeting (Minute type: REGULAR; public)                                                                               |
| <b>Presiding</b>     | Arlene Whitlock, President                                                                                                   |
| <b>Present</b>       | Whitlock, Barmore, Nystrom, Pell, Laskin (quorum of five)                                                                    |
| <b>Staff present</b> | R. Calloway (Harbormaster), G. Fjell (Deputy), L. Brasher (Finance Manager), J. Merithew (Admin. Services), D. Ivers (Clerk) |

### 1. Call to Order; Pledge; Roll Call

President Whitlock called the meeting to order at 6:02 p.m. The Clerk called the roll; all five commissioners answered present.

### 2. Approval of Agenda

Commissioner Barmore moved to approve the agenda as posted. Seconded by Commissioner Nystrom. Motion carried 5-0.

### 3. Approval of Minutes

Commissioner Pell moved to approve the minutes of the regular meeting of 10 May 2022 and the special meeting of 24 May 2022. Seconded by Commissioner Laskin. Motion carried 5-0.

### 4. Public Comment (agenda items)

Four members of the public addressed the Commission. Mr. Dennis K. Farlow (waiting-list applicant) asked whether the proposed length-amendment rule would require him to re-measure a vessel already measured at check-in; the President asked staff to respond during Item 7. Ms. Helen Vorst spoke against the rate adjustment for open basins. Mr. Alan Trieu asked about the timing of the Salmonberry float replacement. No other comment was offered.

### 5. Consent Agenda

Items 5.1 (May voucher register, \$412,806.44), 5.2 (April financial statement), and 5.3 (dock box clearance authorizations) were approved on a single motion by Commissioner Nystrom, seconded by Commissioner Barmore. Motion carried 5-0.

For the record, the May voucher register comprises 214 vouchers: moorage refunds and adjustments \$6,112.08; utilities and electricity \$88,401.77; maintenance and supplies \$96,220.15; payroll and benefits \$201,440.90; professional services \$20,631.54. The April statement shows operating revenue \$1,042,887 against a budget of \$1,015,300, and operating expense \$966,054 against a budget of \$998,400.

### 6. Staff Report -- Harbormaster

Harbormaster Calloway reported 1,180 slips in service, occupancy of 96.4 percent, 14 vacancies in process, and 41 offers and 9 skips logged in May. He reported that the amendment register at the moorage counter continues to be keyed at the shared terminal HB-COUNTER-2 and that the change request to add user-identifier logging (CR-0412, open since 2021) remains unfunded; he asked the Commission to note the matter for the 2023 budget. Deputy Fjell reported on the spring dock inspection cycle and the gangway repair at Gullwing.

### 7. Resolution 2022-06 -- Rate Schedule Amendment and New Section 4.3

Finance Manager Brasher presented the rate study, recommending \$10.40 per foot-month for covered moorage and \$7.55 per foot-month for open moorage, an adjustment of approximately five and one-half percent, effective for billing periods beginning 1 August 2022. She confirmed billing remains on the foot-month basis, length in feet times months

billed, with check-in measurements rounded up to the nearest foot.

Harbormaster Calloway presented the proposed documentation standard, section 4.3, requiring a measurement certificate or haul-out record to support any vessel-length amendment before the amended length may be used to qualify or disqualify an applicant. He described three recent instances in which a recorded length was amended at the counter in the same week a slip was worked, and stated that the register as it stands cannot distinguish a supported amendment from an unsupported one without the certificate or haul-out sheet being filed.

In response to Commissioner Pell, staff confirmed the standard applies prospectively to amendments entered on or after the effective date and that pre-adoption amendments would not be re-opened absent Commission direction. In response to the public comment, staff confirmed an applicant with a valid check-in measurement would not need to re-measure unless seeking to amend the recorded length.

Commissioner Nystrom asked how the standard would be enforced at a counter staffed by nine people sharing one terminal. Harbormaster Calloway answered that enforcement rests on the paper file: the certificate or haul-out sheet must be in the applicant's record on the date the amendment is entered, the register entry must identify the document, and the Deputy Harbormaster will review the register monthly against the day logs. He stated that user-level logging would make review faster but that the paper standard is enforceable without it.

Commissioner Laskin asked whether a haul-out record from any yard would be accepted. Staff answered that the standard requires the yard's measurement sheet showing length overall measured on the hard, and that the District would accept sheets from any bonded yard, naming Foldview Marine Services and the Port's own travel-lift station as the two local examples.

Commissioner Barmore asked about the fiscal effect of the rate adjustment. Finance Manager Brasher stated the adjustment is expected to add approximately \$61,000 in annualized revenue at current occupancy, of which about \$44,000 attaches to the covered basins, and that the receivables balance is not expected to change materially.

MOTION: Commissioner Barmore moved to adopt Resolution 2022-06, amending the moorage rate schedule and adding section 4.3 to Tariff Resolution 2019-14. Seconded by Commissioner Laskin. Discussion: Commissioner Pell stated he supported the documentation standard but would vote no because of the rate increase. The Clerk called the roll: AYES -- Whitlock, Barmore, Nystrom, Laskin (4). NOES -- Pell (1). Motion carried 4-1.

## **8. Salmonberry Float Replacement -- Project Status**

Deputy Fjell reported design at 60 percent and a construction window of January through March 2023 to avoid the April-October boating season. She reported that slips SB-1401 through SB-1428 will be taken out of service in rotation and that affected tenants will be relocated within the basin under the temporary relocation policy. No action taken.

## **9. Committee and Liaison Reports**

Commissioner Nystrom reported on the regional harbors association meeting of 19 May 2022, principally derelict vessel legislation. Commissioner Pell reported on the finance committee's review of the April statements and recommended continued monthly monitoring of electricity recoveries. President Whitlock reported on her meeting with the city regarding the tidelands lease renewal.

## **10. Correspondence**

The Clerk summarized correspondence received since the last meeting: two waiting-list inquiries, one complaint regarding gate noise at Vessbank (referred to operations), one request for liveaboard designation (referred to staff under the standard process), and a letter from the state boating programs office acknowledging the District's grant pre-application for the Salmonberry project.

## **11. Unfinished Business -- Waiting-List Communication Workshop**

Commissioner Nystrom renewed her request for a fall workshop on communication with waiting-list applicants, including the confirmation mailing and the explanation of the four Schedule C reason codes (vessel-fit, not-current, declined-prior-offer, preference-mismatch) given to applicants at the counter. By consensus the workshop was set for the October meeting.

## **12. New Business -- Information Systems Funding**

Harbormaster Calloway placed before the Commission the status of change request CR-0412, open since 2021, which would add user-identifier logging to the legacy vessel particulars amendment screen. He stated that amendments are presently logged to the shared terminal HB-COUNTER-2 only, shared by nine counter and office staff, and that the new documentation standard makes attribution desirable though not legally required. The Commission directed staff to carry CR-0412 into the 2023 budget process with a cost estimate. No appropriation was made.

## **13. Announcement of Closed Session**

President Whitlock announced that the Commission would meet in closed session at the conclusion of the regular meeting to discuss one item of potential litigation, and that no action was expected. The announcement was made under the open public meetings act and noted in the record.

## **14. Commissioner Comments; Adjournment**

Commissioner Barmore thanked staff for the rate study work. Commissioner Pell restated his dissent on the rate increase for the record. The meeting adjourned at 8:14 p.m. on motion by Commissioner Barmore, seconded by Commissioner Pell, carried 5-0.

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Minutes submitted by: Dolores Ivers, District Clerk / Commission Secretary

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Approved: Arlene Whitlock, President (approved 12 July 2022)